

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: July 31, 2026

1	Uplift Law, PC vs. Kogym, LLC 2025-01486231	Claim of Exemption - Wage Garnishment Defendant / Judgment Debtors KOGYM, LLC and Larry Pollock's claim of exemption is DENIED. Judgment Debtors did not meet their burden showing a proper exemption applies here. There is no general federal statute that exempts SBA disaster loan proceeds from levy by judgment creditors. Unlike Social Security benefits, which are protected by a
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		specific federal anti-alienation provision under 42 U.S.C. § 407 that courts have held shields those funds from levy even after deposit into a bank account. Kilker v. Stillman (2015) 233 Cal.App.4th 320. SBA disaster loans—including those made under the Robert T. Stafford Disaster Relief and Emergency Assistance Act—lack a comparable statutory exemption from creditor execution. The federal statutes governing SBA disaster loans under 15 U.S.C. § 636 and disaster assistance under 42 U.S.C. § 5174 do not contain language prohibiting levy, garnishment, or execution by private creditors. While these statutes authorize the federal government to provide disaster relief loans and assistance to individuals and businesses affected by presidentially declared disasters, they do not create an exemption from state law creditor remedies. California’s exemption statutes similarly do not list federal disaster relief funds as exempt property. Ca. Civ. Pro. Section 704.070. Without a federal anti-alienation provision or a California statutory exemption specifically protecting disaster loan proceeds, such funds deposited into a business bank account remain subject to levy under California’s general rule that all property of the judgment debtor is subject to enforcement of a money judgment except as otherwise provided by law. Ca. Civ. Pro. Section 695.010. Uplift Law, PC shall give notice.
2	Vazirnia vs. Zandian 2023-01353637	1. Motion to Compel Further Responses to Special Interrogatories 2. Motion to Compel Production 3. Motion to Compel Response to Requests for Admissions Plaintiff Soha Vazirnia, individually and as trustee of the Reza B. Hosseini and Soha Vazirnia Revocable Trust dated June 12, 2019’s motion to compel further responses to